

YMCA OF GREATER SAN FRANCISCO

CONTRACT POLICY

Effective September 2025

1. PURPOSE

This policy establishes standardized requirements and procedures for submitting, reviewing, and executing contracts between the YMCA of Greater San Francisco (YGSF) and external business partners, organizations, cities, agencies, vendors, or individuals (“party” or “parties”) who wish to conduct business or enter into agreements with YGSF. Contract Procedures are included as Appendix A.

2. DEFINITIONS

For purposes of this policy, the generic term “contract” may be used to describe the following types of agreements:

2.1. GRANT:

A grant is a financial award given by a funding entity (often a government agency or foundation) to an organization or individual to support a specific project or program. Grants usually include:

- Transfer of funds from the grantor to the grantee
- Specific requirements and expectations for how the funds will be used, and for the conduct of the grantee
- Grantee’s insurance and indemnity requirements
- Reporting obligations to show how the money was spent and what was accomplished

2.2. SERVICE AGREEMENT (e. g. School District Agreement):

For YGSF purposes, a Service Agreement is a legally binding contract in which one party compensates another (a service provider) for the full-scale delivery of programs and services described in the agreement. It includes specific requirements and expectations for how the service provider will be compensated, the conduct of the service provider and their sub-contractors, compliance with certain laws and regulations that govern the services, and insurance and indemnity requirements. YGSF typically signs Service Agreements with School Districts, to provide full-scale afterschool or day camp programming.

2.3. MEMORANDUM OF UNDERSTANDING (MOU):

A Memorandum of Understanding is an agreement between two or more parties that:

- May involve the exchange of money
- May be legally binding (YGSF’s MOU template is written to be legally binding)
- May include insurance and indemnity requirements for all parties
- Outlines the terms of an agreement of how parties will execute a particular mutual project or goal
- Outlines roles and responsibilities of each party

2.4. INDEPENDENT CONTRACTOR AGREEMENT (ICA):

An Independent Contractor Agreement is a contract that outlines the terms and conditions between a contracting party and a service provider/contractor for the delivery of services. This agreement is crucial for establishing a clear understanding of the relationship between the parties, ensuring that both the company and the contractor are aware of their rights and obligations. Typically, the contracting party pays for services from the contractor and sets terms that shift risk (indemnity and insurance) to the contractor. The contractor shall have no employment relationship with the contracting party and is in control of the means and methods of service delivery.

2.4.1. Independent Contractor Agreement Addendum:

The YGSF IC Addendum is a document that modifies or adds to an existing Independent Contractor Agreement. The YGSF IC Addendum is a new legally binding contract, once it is fully executed by all the required parties.

2.5. LEASE AGREEMENTS:

2.5.1. Facility

A lease agreement is a formal, legally binding contract between a landlord (lessor) and a tenant (lessee) that outlines the terms under which the tenant can rent, exclusively use and occupy a property.

2.5.2. Equipment

An equipment lease agreement is a contractual arrangement between a lessor (equipment owner) and a lessee (renter) that allows the lessee to use specific equipment for a set period in exchange for regular payments.

2.6. FACILITY LICENSE AGREEMENTS:

A license agreement is a contractual arrangement between a licensor (property owner) and a licensee that allows the licensee non-exclusive rights to occupy and use the property for a specific purpose and duration.

2.7. MAINTENANCE AGREEMENTS

A maintenance agreement is a contract between a service provider and a customer that outlines the terms and conditions for ongoing maintenance and support of equipment, property, or systems.

2.8. CONSTRUCTION CONTRACTOR AGREEMENT

A construction contract is a legally binding agreement between two or more parties, typically involving a property owner (or client) and a contractor. It outlines the terms and conditions under which construction will be carried out, including the scope of work, payment terms, schedule, quality standards, and dispute resolution mechanisms.

2.9. ENGAGEMENT LETTER

An engagement letter is a formal written agreement between a service provider and a client that outlines the terms of the professional relationship. The letter will set clear expectations for both parties, define the scope of work and services provided, and specify fees and payment terms. Engagement letters may be used for professional services like audits, accounting services or attorney services.

2.10. FACILITY USE AGREEMENT

An agreement between YGSF and another party (a non-profit or individual user) for non-exclusive use of YGSF facility space.

2.11. USER GROUP AGREEMENT

An agreement between YGSF Camp Jones Gulch and another party for programming and overnight facility use.

3. CONTRACT APPROVAL

All contracts must be fully executed, meaning approved and signed by the authorized YGSF signatories described below and counter signed by the other party to the contract, before contract performance by any party can begin (e.g., before services are rendered).

Contracts and all necessary insurance forms, approval forms, or exhibits must be submitted to the Legal Department at least 5 business days prior to the desired contract execution or start date. The 5 business day review period will not begin until all necessary documents are complete and submitted in their final form.

The YGSF staff liaison for the contract is expected to follow guidelines in the YGSF Contract Procedures, obtain the other party's signature on the contract, and submit it to the Legal Department for review and/or execution by the authorized signatory. The Legal Department will send a duly executed contract back to the staff liaison when applicable.

Under YGSF's Gift Acceptance Policy ("GAP"), some contracts related to grants or gifts must be approved by certain staff, the Gift Acceptance Committee or the Board of Directors. Also, YGSF's Approval Guidelines and Policy ("Guidelines") requires Board of Directors approval of certain contracts and other matters. This Policy is intended to supplement but not replace the approval requirements of the GAP and Guidelines. YGSF staff responsible for related contracts should be familiar with the GAP and Guidelines and allow time for seeking advance authorization as necessary.

3.1. CONTRACT TEMPLATES

YGSF has standard contract templates that must be used for high-risk services and agreements, including but not limited to youth program services, professional services (consulting, financial, legal), independent contractors services, transportation services, medical screening services, and services where we are giving the provider access to our staff and/or members. If we are using a YGSF contract template, certain contracts described in this section can be executed by an Executive Director and Vice President, without prior review by the Legal Department. Contract templates, approval forms, and instructions can be found on the YGSF Risk and Legal Department SharePoint page.

3.2. CONTRACT REVIEW AND EXECUTION

3.2.1. Contracts that require Legal Department approval, signature by the Senior Vice President of the functional area and signature by an Association Officer PRIOR to contract performance:

The following types of contracts, and related documentation, must be reviewed and approved by the Legal Department, and signed by the **Senior Vice President of the functional area** initiating the contract (or the Officer, if there is no SVP of the functional area), signed by an authorized Officer of the organization (e.g. CEO, CPO, CFO, COO), and counter signed by the other party to the contract before services can be performed and payment issued.

*With advance discussion, signing authority may in some circumstances be delegated to the **functional Vice-President**, Branch Executive Director, or Facilities Executive Director.

Contract Subject	Contract Type	YGSF ICA Approval form	Legal Review BEFORE or AFTER Contract Execution	Contract Signed by Officer	Contract Signed by Sr. VP	Contract Signed by VP	Contract Signed by ED	Collect COI	Collect Endorsements
Alcohol Service	Use YGSF Alcohol Vendor Insurance and Indemnity Agreement Template	No	Before	Yes	Yes	No*	No*	Yes	Yes
Bus/Transportation Service	Use YGSF Bus Service Agreement Template	No	Before	Yes	Yes	No*	No*	Yes	Yes
Business Associate Agreement	Supplied by contracting party or by Legal Department	No	Before	Yes	Yes	No*	No*	Yes - if required by contract	Yes - if required by contract
Consultant Agreement (e.g. website, technology development, financial, fundraising)	Supplied by contracting party or by Legal Department	Yes - if ICA	Before	Yes	Yes	No*	No*	Yes	Yes
Exchange of Employee/Member Data	Supplied by contracting party	No	Before	Yes	Yes	No*	No*	Yes - if required by contract	Yes - if required by contract
Fiscal Sponsorship Agreement	Supplied by contracting party or by Legal Department	No	Before	Yes	Yes	No*	No*	Yes - if required by contract	Yes - if required by contract
Contract Subject	Contract Type	YGSF ICA Approval form	Legal Review BEFORE or AFTER Contract Execution	Contract Signed by Officer	Contract Signed by Sr. VP	Contract Signed by VP	Contract Signed by ED	Collect COI	Collect Endorsements
Grant Funded Contractor or Services	Use YGSF ICA or MOU contract template, if applicable	Yes - if ICA	Before	Yes	Yes	No*	No*	Yes	Yes
Legal Services	Supplied by contracting party or by Legal Department	Yes - if ICA	Before	Yes	Yes	No*	No*	Yes - if required by contract	Yes - if required by contract
New Independent Contractor (professional or youth)	Use YGSF ICA Template	Yes	Before	Yes	Yes	No*	No*	Yes	Yes
PII or HIPPA related contract	Supplied by contracting party or by Legal Department	No	Before	Yes	Yes	No*	No*	Yes - if required by contract	Yes - if required by contract
Professional Services (from a professionally licensed provider)	Use YGSF Professional Service ICA	Yes	Before	Yes	Yes	No*	No*	Yes	Yes
Property Lease, License, or other Rental Agreement (excluding equipment rental, YGSF Facility Use, and User Group Agreements)	Supplied by contracting party	No	Before	Yes	Yes	No*	No*	Yes - if required by contract	Yes - if required by contract
School District Service Agreement or MOU	Supplied by contracting party	No	Before - one time per school year, and whenever District changes the terms	Yes	Yes	No*	No*	Yes - if required by contract	Yes - if required by contract
Software as a Service Agreement (SAAS)	Supplied by contracting party	No	Before	Yes	Yes	No*	No*	Yes - if required by contract	Yes - if required by contract
Unique/Novel Program or Services	Use YGSF ICA or MOU contract template, if applicable	Yes - if ICA	Before	Yes	Yes	No*	No*	Yes	Yes
Youth Program Services	Use YGSF ICA Template	Yes	Before	Yes	Yes	No*	No*	Yes	Yes

3.2.2. Contracts that require Legal Department approval, signature by the Senior Vice President, signature by the functional Vice President initiating the contract, and signature by the other party to the contract PRIOR to contract performance. *With advance discussion, signing authority may in some circumstances be delegated to the Branch Executive Director, or Facilities Executive Director:

Contract Subject	Contract Type	YGSF ICA Approval form	Legal Review BEFORE or AFTER Contract Execution	Contract Signed by Officer	Contract Signed by Sr. VP	Contract Signed by VP	Contract Signed by ED	Collect COI	Collect Endorsements
Bounce House, Stage, Tent or similar equipment (that could harm staff/participants if improperly set-up)	Use YGSF Insurance and Indemnity Agreement Template	No	Before	No	Yes	Yes	No*	Yes	Yes
Health Screening, Medical Service, or Blood Bank	Use YGSF Contract Template	No	Before	No	Yes	Yes	No*	Yes	Yes
Internship, Affiliation, or Placement Agreement	Supplied by contracting party or by Legal Department	No	Before	No	Yes	Yes	No*	Yes - if required by contract	Yes - if required by contract
Photographer	Use YGSF ICA Template	Yes	Before	No	Yes	Yes	No*	Yes	Yes
Security Service	Supplied by contracting party or by Legal Department	Yes - if ICA	Before	No	Yes	Yes	No*	Yes - if required by contract	Yes - if required by contract
Staffing Service	Supplied by contracting party	No	Before	No	Yes	Yes	No*	Yes - if required by contract	Yes - if required by contract

3.2.3. Contracts that DO NOT require Legal Department approval before signature, and CAN be signed by the Branch Executive Director, Facilities Executive Director, or equivalent Association role and next level Vice President:

Contracts that meet the following criteria, and are for \$10,000 or less, DO NOT require review by the Legal Department before signature, and CAN be signed by the Branch Executive Director, Facilities Executive Director, or equivalent Association role, and next level Vice President (submit contracts and related documentation to the Legal Department for internal signatures and filing). *With advance approval, signing authority may in some circumstances be delegated to the Associate Executive Director:

Contract Subject	Contract Type	YGSF ICA Approval form	Legal Review BEFORE or AFTER Contract Execution	Contract Signed by Officer	Contract Signed by Sr. VP (or VP if no SVP)	Contract Signed by VP	Contract Signed by ED	Collect COI	Collect Endorsements
Auctioneers	Use YGSF ICA Template	Yes	After- if \$10,000 or less	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	Yes	Yes
Construction	Use YGSF Template	No	After	No - if \$10,000 or less	Yes	Yes - if \$10,000 or less	Yes - if \$10,000 or less	Yes	Yes
Equipment or Furniture Rental	Supplied by contracting party	No	After - if \$10,000 or less	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	No	No
Event Production	Use YGSF ICA Template	Yes	After	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	Yes	Yes
Food Service (more than mere food delivery, e.g. catering set up, food service by catering staff)	If \$10,000 or less, contract can be provided by contracting party. \$10,001 or more, use YGSF ICA Template	No	After- if \$10,000 or less	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	No- if \$10,000 or less	No- if \$10,000 or less
Grant Agreement	Supplied by Grantor	No	After	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	Yes - if required by contract	Yes - if required by contract
Hotel, Conference, Venue Rental	Supplied by contracting party	No	After	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	Yes - if required by contract	Yes - if required by contract
Maintenance Agreement	Supplied by contracting party	No	After	No - if \$10,000 or less	Yes	Yes - if \$10,000 or less	Yes - if \$10,000 or less	Yes	Yes
Musicians, DJs, Entertainers, Emcees	Use YGSF ICA Template	Yes	After- if \$10,000 or less	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	No	No
PTA Agreement for Enrichment or Linked Day Program	Use YGSF MOU Template	No	After - if District staff have no contact with students	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	Yes - if required by contract	Yes - if required by contract
Staff Training	Use YGSF ICA Template	Yes	After	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	Yes	Yes
Workforce Development	Use YGSF Template	No	After	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	Yes - if required by contract	Yes - if required by contract

3.2.3.1. Contracts under Section 3.2.3 with a value of \$10,001 or more fall under the review and execution requirements of Section 3.2.1.

3.2.4. Contracts that meet the following criteria can be signed solely by the Branch Executive Director, and DO NOT require prior review by the Legal Department:

- Facility Use Agreement – must use YGSF template; must collect COI
- Camp Jones Gulch User Group Agreement – must use YGSF template; must collect COI
- Presenter Release (paid or unpaid) – must use YGSF template

3.2.5. An Independent Contractor Agreement under Section 3 can be renewed by an Addendum and signed by parties in accordance with the contract's subject matter.

4. CONTRACT RETENTION

Duly executed contracts falling under Sections 3.2.1 - 3.2.3 shall be retained by the Legal Department either in a hard-copy or cloud-based filing system. The staff liaison for the contract shall send the duly executed contract to the Legal Department and keep a copy in their files. Contracts under Section 3.2.4 should be retained by the branch in accordance with YGSF document retention policies.

5. COMPLIANCE

To mitigate risk to the organization it is critical that all internal parties engaged in any type of agreement with external parties adhere to the Contract Policy and its processes and procedures. This Policy provides common examples of contract types and subject matter. YGSF employees are expected to comply with the spirit of this policy, if their contract type or subject is not described herein, and to consult with the Legal Department early in the approval process, when in doubt.

Failure to adhere to YMCA of Greater San Francisco's policies and procedures can result in disciplinary action, up to and including termination of employment or legal action.

5.1. Insurance

YGSF and contract parties must comply with the insurance terms of their contract. Where YGSF requires insurance from the other party, the certificate of insurance and relevant policy endorsements must be submitted for approval along with the contract.

5.2. Commencement of Services

Contract services shall not commence in the absence of a fully executed contract.

5.3. Payment

Payments to external parties must be made by the accounting department via check, ACH or wire transfer. When a contract requires electronic payment, the CFO must approve this payment method prior to contract execution.

Purchase cards CANNOT be used to settle payment requirements on any contract or agreement. Purchase cards shall not be used to circumvent the contract approval policy and procedures. Any use of a purchase card in violation of this contract policy or the purchase card policy will result in temporary or permanent suspension of the card for the violating cardholder.